

26SMCV02306 26SMCV02306

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C08%2F21%2F2026

Source SHA-256: 8a22993422efa6c2e28ffffdc9e4e6d88dd7dcd0a1d08e935b4d5320b63260af

Case Number: 26SMCV02306 Hearing Date: August 21, 2026 Dept: N

TENTATIVE RULING

Defendant 24 Hour Fitness USA, LLC's Motion to Quash Service of Summons for Lack of Proper Service is GRANTED.

Defendant 24 Hour Fitness USA, LLC to give notice.

REASONING

Request for Judicial Notice

Defendant 24 Hour Fitness USA, LLC ("Defendant") requests judicial notice of records from the California Secretary of State website relating to 24 Hour Fitness Corporation and 24 Hour Fitness USA, LLC. Defendant's request is GRANTED pursuant to Evidence Code section 452, subdivision (c).

Analysis

Code of Civil Procedure section 418.10, subdivision (a)(1), provides that a defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over it. Defendant moves to quash service of the summons and complaint upon it on the ground that Plaintiff Nicole Beck ("Plaintiff") failed to serve Defendant in a code-complaint manner. Plaintiff has not filed an opposition to the present motion. While the moving party generally bears the initial burden of proof on its motion, and lack of opposition will not automatically entitle the moving party to prevail on its motion, a party's failure to file an opposition can be considered a concession that the motion is meritorious. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Moreover, "[w]hen a defendant challenges the court's personal jurisdiction on the ground of improper service of process," as Defendant does here, "the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413, quotation marks omitted.)

No proof of service has been filed with the Court, nor does Defendant provide evidence of any proof of service. Nonetheless, Defendant represents that documents including the summons and complaint in this action were "left at a club location in Fullerton, California." (Mot., Wong Decl. ¶ 2.) As to serving a corporate entity like Defendant, Code of Civil Procedure section 416.10, subdivisions (a) and (b), state that "[a] summons may be served on a corporation by delivering a copy of the summons and the complaint . . . [t]o the person designated as agent for service of a process" or "[t]o the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to

receive service of process." As to substituted service upon a corporation, Code of Civil Procedure section 415.20, subdivision (a), provides as follows:

In lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in [Code of Civil Procedure section 416.10, et seq.], a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

Code of Civil Procedure section 416.90 also provides that "[a] summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process."

Merely leaving papers at a business location, especially where the purported entity who was served is inactive and suspended, is not proper service, and there is no evidence that proper service has occurred here. Accordingly, Defendant 24 Hour Fitness USA, LLC's Motion to Quash Service of Summons for Lack of Proper Service is GRANTED.